

Warranties and Representations

Authority to use Other Transaction Agreement

In accordance with Section 4022 of Title 10, Amendments to Other Transaction Authority, of the National Defense Authorization Act (NDAA) for Fiscal Year 2018, which governs the authority to use an Other Transaction Agreements to carry out prototype projects that are directly relevant to enhancing the mission effectiveness of military personnel and the supporting platforms, systems, components, or materials proposed to be acquired or developed by the Department of Defense, or to improvement of platforms, systems, components, or materials in use by the armed forces, _____ hereby provides the following Warranties and Representations:

1. Prime Contractor: The Prime Contractor _____ for the proposed program _____ is a traditional defense contractor _____ is a nontraditional defense contractor. *(check one)* based on the following definition:

An entity that is not currently performing and has not performed, for at least the one-year period preceding the solicitation of sources by the Department of Defense for the procurement or transaction, any contract or subcontract for the Department of Defense that is subject to the full coverage under the cost accounting standards prescribed pursuant to Section 1502 of title 41 and the regulations implementing such section.

If the prime contractor is a traditional defense contractor and proposes the use of one or more nontraditional defense contractors, the following information is required for each participating nontraditional defense contractor.

Legal Name of Nontraditional Defense Contractor:	
DUNS #:	
Address:	
Point of Contact (Name, Title, Phone #, Email):	
I. Please select at least one or more of the significant contribution(s) listed below that will be provided by the Nontraditional defense contractor cited above:	
☐	A - The significant contribution involves developing, demonstrating or providing a new key technology or product.
☐	B - The significant contribution involves developing, demonstrating or providing a new part or material that is not readily available. <i>Please describe what the new part or material is and why it is not readily available.</i> B-temia is providing custom manufactured actuators, developing algorithms for enhanced control and modality, and providing expertise for materials and design of the harnessing.
☐	C - The significant contribution involves the use of skilled and/or unique personnel, facilities and/or equipment that are within the capabilities of the designated nontraditional defense contract and required to successfully complete the program.

☐	D - The use of this designated nontraditional defense contractor will cause a material reduction in the cost or schedule.
☐	E - The use of this designated nontraditional defense contractor will otherwise enhance or improve the mission effectiveness of military personnel or the supporting platforms, systems, components, or materials.
II. In addition to the above please provide the following information:	
Q1	What additional capability or information beyond those described in A through E above does this nontraditional defense contractor have that is necessary for this specific effort?
A1	
Q2	In which specific task/phase(s) of the effort will the nontraditional defense contractor be used?
A2	
Q3	What is the total estimated cost of the nontraditional defense contractor included in the proposal?
A3	

Signature

Date _____

Type Full Name and Title